

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
STEVEN HEINITZ,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
P.O. JELSON GOYCO individually and in his official capacity, P.O.
SGT. GLEMAUD individually and in his official capacity, P.O.'s
JOHN DOE 1 – 5, P.O.'s JANE DOE 1-5, AND OTHER POLICE
OFFICERS WHOSE IDENTITIES ARE IN THE EXCLUSIVE
CONTROL AND POSSESSION OF THE CITY OF NEW YORK
AND THE NEW YORK CITY POLICE DEPARTMENT, &
RAMONE SIMONE,

Defendants.
-----X

SUMMONS

Index No.:

Plaintiff designates
Kings County
as the place of trial.

The basis of venue is:
the county in which the
cause of action arose.

The incident occurred in
Kings County.

Date filed: November 11, 2014

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the plaintiff's attorneys, within twenty days after the services of this Summons exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: Queens, New York
November 11, 2014

s/ Edward J. Anthony
Edward J. Anthony
Attorney for Plaintiff
C/O Law Offices of Michael E. Talassazan
9965 64th Road, Apt. 1d
Rego Park, New York 11347
Tel: 917 768 1155
Fax: 347 808 9148

To:

The Comptroller of the City Of New York
Municipal Building
1 Centre Street, Room 1225
New York, New York 10007

The City of New York
100 Church Street
New York, New York 10007

Ramone Simone
717 Metropolitan Avenue
Brooklyn, New York 11211

SUPREME COURT OF THE STATE OF NEW YORK
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Index No.:

**VERIFIED
COMPLAINT**

Plaintiff Steven Heinitz, by his attorney Edward J. Anthony, as and for his complaint against
defendants, states, upon information and belief, as follows:

1. At the time of the commencement of this action, plaintiff Steven Heinitz was and still is a resident of the County of Kings, City and State of New York.
2. The cause of action alleged herein arose in the County of Kings, City and State of New York.
3. This action falls within one of more of the exceptions set forth in CPLR § 1602.
4. At all times relevant herein, defendant The City of New York was and still is a municipal corporation.
5. At all times relevant herein, defendant New York City Police Department was and still is a department of The City of New York.
6. At all times relevant herein, defendant Ramone Simone was and still is a resident of the County of Kings, City and State of New York.

7. At all times relevant herein, there existed a premises known as 717 Metropolitan Avenue located in the County of Kings, City and State of New York.

8. At all times relevant herein, defendant Ramone Simone was the owner of the premises known as 717 Metropolitan Avenue located in the County of Kings, City and State of New York.

9. At all times relevant herein, defendant Ramone Simone was the property manager of the premises known as 717 Metropolitan Avenue located in the County of Kings, City and State of New York.

10. At all times relevant herein, defendant Ramone Simone was the superintendent of the premises known as 717 Metropolitan Avenue located in the County of Kings, City and State of New York.

11. At all times relevant herein, defendant Ramone Simone operated the aforesaid premises.

12. At all times relevant herein, defendant Ramone Simone managed the aforesaid premises.

13. At all times relevant herein, defendant Ramone Simone maintained the aforesaid premises.

14. At all times relevant herein, defendant Ramone Simone controlled the aforesaid premises.

15. At all times relevant herein, and upon information and belief, it was the duty of defendant Ramone Simone to maintain the aforesaid premises, including the fixtures and appurtenances' thereto.

16. At all times relevant herein, and upon information and belief, it was the duty of defendant Ramone Simone to provide a reasonably safe environment for his tenants, including the plaintiff Steven Heinitz.

17. At all times relevant herein, the plaintiff was lawful resident of the premises located at 717 Metropolitan Avenue, Apt. 3R, located in the County of Kings, City and State of New York.

18. At all times relevant herein, the plaintiff was a tenant of the premises known as 717 Metropolitan Avenue, Apt. 3R, located in the County of Kings, City and State of New York.

19. At all times relevant herein, defendant P.O. Jelson Goyco was a New York City Police Department police officer working within the scope of his employment with the New York City Police Department.

20. At all times relevant herein, defendant P.O. SGT. Glemaud was a New York City Police Department sergeant working within the scope of his employment with the New York City Police Department.

21. At all times relevant herein, defendant Police Officers “John Doe” 1-5 were unidentified police officers working within the scope of their employment with the New York City Police Department.

22. At all times relevant herein, defendant Police Officers “Jane Doe” 1-5 were unidentified police officers working within the scope of their employment with the New York City Police Department.

23. At all times relevant herein, defendants Other Police Officers Whose Identities Are In The Exclusive Control And Possession Of The City Of New York And The New York City Police Department, were unidentified police officers working within the scope of their employment with the New York City Police Department.

24. Prior to February 10, 2014, and within the time prescribed by law, a sworn Notice of Claim, stating among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff’s demands for adjustment thereof was duly served on the Claimant’s behalf on the Comptroller for The City of New York, and that thereafter said Comptroller for The City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

25. A statutory 50-H hearing was conducted on July 30, 2014.

26. At all times relevant herein, defendant The City Of New York, by its agents, servants and/or licensees, operated a police force known as the New York City Police Department and its personnel.

27. At all times relevant herein, defendant The City Of New York, by its agents, servants and/or licensees, managed a police force known as the New York City Police Department and its personnel.

28. At all times relevant herein, defendant The City Of New York, by its agents, servants and/or licensees, trained a police force known as the New York City Police Department.

29. At all times relevant herein, defendant The City Of New York, by its agents, servants and/or licensees, maintained a police force known as the New York City Police Department and its personnel.

30. At all times relevant herein, defendant The City Of New York, by its agents, servants and/or licensees, supervised a police force known as the New York City Police Department and its personnel.

31. At all times relevant herein, defendant The City Of New York, by its agents, servants and/or licensees, controlled a police force known as the New York City Police Department and its personnel.

32. At all times relevant herein, defendant P.O. Jelson Goyco was acting within and in furtherance of his employment with defendant The City Of New York.

33. At all times relevant herein, defendant P.O. Jelson Goyco was acting within and in furtherance of his employment with defendant the New York City Police Department.

34. At all times relevant herein, P.O. SGT. Glemaud was acting within and in furtherance of his employment with defendant The City Of New York.

35. At all times relevant herein, defendant P.O. Sgt. Glemaud was acting within and in furtherance of his employment with defendant the New York City Police Department.

36. At all times relevant herein, defendant Police Officers “John Doe” 1-5 were acting within the scope and in furtherance of his employment with defendant The City Of New York.

37. At all times relevant herein, defendant Police Officers “John Doe” 1-5 were acting within the scope and in furtherance of his employment with defendant New York City Police Department.

38. At all times relevant herein, defendant Police Officers “Jane Doe” 1-5 were acting within the scope and in furtherance of his employment with defendant New York City Police Department.

39. At all times relevant herein, Police Officers Whose Identities Are In The Sole Possession Of The New York City Police Department, were acting within the scope and in furtherance of his employment with defendant The City Of New York.

40. At all times relevant herein, defendant Police Officers Whose Identities Are In The Sole Possession Of The New York City Police Department, were acting within the scope and in furtherance of his employment with defendant New York City Police Department.

41. At all times herein, the individually named defendants and other police personnel were acting within the scope and in the furtherance of their employment with the New York City Police Department and the City of New York.

42. At all times relevant herein, defendant The City Of New York, by its agents, servants and/or licensees, operated the Office of the District Attorney, Kings County, and its personnel.

43. At all times relevant herein, defendant The City Of New York, by its agents, servants and/or licensees, managed a Office of the District Attorney, Kings County, and its personnel.

44. At all times relevant herein, defendant The City Of New York, by its agents, servants and/or licensees, trained the staff of the Office of the District Attorney, Kings County.

45. At all times relevant herein, defendant The City Of New York, by its agents, servants and/or licensees, maintained the Office of the District Attorney, Kings County and its personnel.

46. At all times relevant herein, defendant The City Of New York, by its agents, servants and/or licensees, supervised the Office of the District Attorney, Kings County, and its personnel.

AS AN FOR A FIRST CAUSE OF ACTION

47. Plaintiff repeats and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

48. On or about November 12, 2013, plaintiff was lawfully present at his residence located at located at 717 Metropolitan Avenue, Apt. 3R, located in the County of Kings, City and State of New York.

49. On or about November 12, 2013, plaintiff was caused to be subjected to unreasonable force, physical assault, battery, verbal abuse, search, seizure, humiliation, and the deprivation of his civil, human, and constitutional rights by the herein referenced Police Officers.

50. At or about the aforesaid time and place, plaintiff was caused to be assaulted, battered, falsely arrested, falsely confined, falsely imprisoned and maliciously prosecuted.

51. At or about the aforesaid time and place, members of the New York City Police Department, including but not limited to P.O. JELSON GOYCO and P.O. SGT. GLEMAUD, removed plaintiff from his residence without justification and without just or probable cause or provocation and physically assaulted, battered, and falsely confided, arrested him.

52. The plaintiff was falsely arrested, falsely confined, falsely imprisoned and maliciously prosecuted when members of the New York City Police Department, including but not limited to P.O. JELSON GOYCO and P.O. SGT. GLEMAUD, forcibly removed plaintiff from his residence whereupon plaintiff was assaulted, battered, wrongfully detailed, and falsely arrested by members of the New York City Police Department who used excessive force in arresting plaintiff.

53. Thereafter, defendants took plaintiff into custody without just or probable cause or provocation and continued maliciously prosecuting the plaintiff.

54. On or about November 12, 2013, the aforementioned police officers performed a warrantless search of the plaintiff's residence without probable cause.

55. On or about November 12, 2013, the aforementioned police officers fabricated evidence of a crime at the residence of the plaintiff.

56. On or about November 12, 2013, the aforementioned police officers planted evidence in the residence of the plaintiff, including a small vial commonly used to carry powder narcotics.

57. The aforementioned police officers swore false criminal complaints and instituted and maintained false criminal charges against plaintiff and caused him to be detained against his will and in violation of his Constitutional and Common Law Rights.

58. On or about November 12, 2013, plaintiff was wrongfully arrested, detained, and confined without probable cause.

59. Plaintiff was not given or read his Miranda warnings by the arresting officers.

60. Plaintiff was not informed of the charges against him until the following day upon assignment with a public defender.

61. Plaintiff was publicly handcuffed and transported to the 90th Precinct Police Station, located in Brooklyn, New York.

62. Plaintiff was wrongfully detained and confined until his arraignment.

63. During his unlawful detainment plaintiff was subject to further humiliation, disparagement, and deprivation of basic civil and human rights.

64. Plaintiff was arraigned at the Kings County Criminal Court before the Honorable Judge Rodriguez on November 13, 2013 and falsely charged with violating Penal Code § 220.03.

65. On or about November 13, 2014 plaintiff was released from custody on his own recognizance.

66. Plaintiff appeared again at the Kings County Criminal Court on January 7, 2014 (Docket Number 2013KN086981), Part AP 3.

67. The District Attorney refused to terminate the prosecution despite having insufficient evidence to continue with criminal charges against the plaintiff.

68. Following additional Criminal Court appearances including February 14, 2014 and May 22, 2014, the charges were dismissed, because the district attorney did not have any reasonable basis or evidence to maintain the aforementioned criminal charges against the plaintiff.

69. No negligence or wrongful act of any kind on the part of the plaintiff contributed to the occurrence alleged herein in any manner whatsoever.

AS AND FOR A SECOND CAUSE OF ACTION

70. Plaintiff repeats and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

71. The wrongful arrest, detention and prosecution herein and the results thereof were due to and caused by the joint, several and concurrent negligence of the defendants their agents, servants, employees and/or licensees in negligently, carelessly, maliciously, wrongfully, recklessly and with gross negligence causing, allowing and/or permitting the plaintiff to be physically detained, assaulted, battered, falsely arrested, maliciously prosecuted, and deprived the plaintiff of his civil rights; in the use of wantonness, recklessness and carelessness that accompanied the unbridled discretion in the false arrest, false imprisonment, detention, malicious prosecution, and processing including finger printing, retinal scanning, and mug shots; in failing to guard against the use of improper arrest and prosecution procedures and excessive physical force against to members of the public, including plaintiff; in the careless, reckless and negligent use of arrest and prosecution procedures; in the wrongful, willful,

malicious and negligent and grossly negligent use of excessive physical force such that plaintiff was physically detained, assaulted, falsely arrested and deprived of his civil rights; in failing to follow proper search and seizure procedures and protocols; in effecting a warrantless search of the plaintiff's residence; in fabricating evidence of a crime; in falsely accusing the plaintiff of being in possession of contraband; in failing to make proper or reasonable inquiry into the facts and circumstances related to the unlawful search and seizure of the plaintiff; in failing to properly hire and supervise the selection of competent police officers; in negligently selecting, hiring, training and supervising police officers such that said officers would negligently, carelessly, recklessly, wrongfully, willfully, maliciously and with gross negligence falsely arrest, employ the use of needless and/or excessive physical force and improperly perform the other acts of negligence that led to the events alleged herein; in failing to give proper instruction and training to its police officers in proper arrest procedures and in the necessary and safe use of physical force; in the negligent and careless hiring, screening, training and supervision of their police personnel; in failing to punish improper police procedures; in failing to retrain and reinstruct personnel in proper police procedures; in failing to properly hire, retain, instruct, train and supervise their employees, servants, agents and/or licensees; in failing to properly determine when arrest and prosecution is appropriate; in failing to discontinue the criminal prosecution when no evidence of a crime existed; in failing to exercise prosecutorial discretion in bringing false criminal charges against the plaintiff; in failing to properly hire, retain, instruct, train and supervise their employees, servants, agents and/or licensees to approach and otherwise interact with members of the public; in violating and otherwise failing to adhere to and properly follow guidelines and standards used and promulgated by the New York City Police Department; in violating 42 U.S.C. § 1983, and the Monell Doctrine by engaging in a pattern and practice of civil rights violations including but not limited to, instituting arrests without probable cause, making warrantless arrests with the intent to harass innocent citizens when it was known no crime was committed; in failing to investigate the circumstances, facts, and

evidence surrounding the unlawful arrest of the plaintiff and other innocent citizens within the jurisdiction of the subject police precinct; in failing to report the true facts and circumstances to the district attorney; in submitting falsified police reports and statements regarding warrantless arrests; and in failing to ensure proper legal and/or probable cause to institute an arrest.

72. At all times relevant herein, the Defendant the City of New York failed to properly update, maintain and amend its records regarding problem officers who the City of New York had reason to believe or knew or in the exercise of reasonable care should have known that their agents, servants and/or employees were a danger to themselves and to others.

73. At all times relevant herein, the defendant the City of New York was negligent, reckless and careless in the hiring and training of its personnel and in the methodology used for the purposes police officer evaluations and methodology used to ferret out violent prone officers.

74. The defendant City of New York was also negligent in failing to instruct, train and monitor its Police employees and for being negligent in the hiring and retention of said police officers despite having prior knowledge of their vicious propensities.

75. Defendant the CITY OF NEW YORK, The New York City Police Department, P.O. JELSON GOYCO and P.O. SGT. GLEMAUD and other members of the New York City Police Department whose identity is currently unknown, were further negligent, reckless and careless in the failure to properly hire, train, supervise, manage, control and discipline their employees.

76. Defendants were also negligent, reckless and careless in their use, upkeep, maintenance and/or management of a system for ferreting out and keeping track of officers who have dangerous dispositions and vicious and violent propensities. Defendants and their agents, servants and/or employees falsely arrested plaintiff and prosecuted him without any just or probable cause for doing so. Defendants also violated the Civil Rights and constitutional guarantees of the plaintiff under color of authority and by abusing the authority vested in them.

77. It is further claimed that the defendant the City of New York and the New York City Police Department were negligent in that its plan and strategy for the deployment and allocation of its municipal resources lacked a rational basis, was plainly inadequate and was not properly reviewed in light of its actual operation.

78. As a result of the foregoing, plaintiff was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for legal representation, counseling, psychiatric, and/or psychological care, and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

79. As a result of the foregoing, plaintiff was damaged in an amount greater than the jurisdictional limits of all lower courts.

AS AND FOR A THIRD CAUSE OF ACTION

80. Plaintiff repeats and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

81. The above stated acts and omissions constituted deprivation of plaintiff's rights and freedoms and under the Federal and State constitutional and civil rights laws and further, constitute actionable wrongs pursuant to 42 U.S.C. 1983, and the Monell Doctrine.

82. At all times relevant herein, the defendants have engaged in a pattern and practice of making unlawful arrests without probable cause.

83. At all times relevant herein, the defendants have engaged in a pattern and practice of conducting warrantless searches without justification or probable cause.

84. At all times relevant herein, the defendants have engaged in a pattern and practice of failing to follow proper arrest procedures.

85. As a result of the foregoing, plaintiff was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for legal representation counseling, psychiatric, and/or psychological care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

86. As a result of the foregoing, plaintiff was damaged in an amount greater than the jurisdictional limits of all lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION

87. Plaintiff repeats and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

88. Defendant The City of New York, by the Office of the District Attorney, County of Kings, falsely initiated a prosecution against the plaintiff for an alleged violation of Penal Code § 220.03.

89. At the time the aforementioned prosecution was initiated, the defendant did not have probable cause to believe that the plaintiff was guilty of violating Penal Code § 220.03.

90. At all times relevant herein, the City of New York, by the Office of the District Attorney, Kings County, was without a reasonable basis to believe that plaintiff committed a crime.

91. At all times relevant herein, the City of New York, by the Office of the District Attorney, Kings County, acted maliciously by initiating the aforementioned criminal prosecution against the plaintiff.

92. At all times relevant herein, the City of New York, by the Office of the District Attorney, Kings County, was without probable cause to believe that the plaintiff committed a crime.

93. At all times relevant herein, defendant acted maliciously in commencing and continuing the aforementioned criminal prosecution against the plaintiff.

94. As a result of the foregoing, plaintiff was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effect will be permanent; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for legal representation counseling, psychiatric, and/or psychological care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

95. As a result of the foregoing, plaintiff was damaged in an amount greater than the jurisdictional limits of all lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION

96. Plaintiff repeats and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

97. Plaintiff, before and at the time of defendant's defamation, possessed a good name and character among neighbors and acquaintances for moral worth and integrity, and was never suspected of acting in any criminal manner whatsoever.

98. At the aforementioned time and place, defendant Ramone Simone maliciously published false statements of and concerning the plaintiff to the surrounding neighbors of the building where the plaintiff had lived for his entire life and also to the aforementioned police officers.

99. Defendant Ramone Simone falsely claimed that the plaintiff was in possession of illegal narcotics and that plaintiff was engaged in the sale and/or distribution of illegal narcotics from his apartment unit.

100. At various times in 2013, defendant Ramone Simone maliciously published false statements of and concerning the plaintiff to the surrounding neighbors of the apartment building where plaintiff lived for his entire life, falsely alleging that plaintiff was in possession of illegal narcotics and that plaintiff was engaged in the sale and/or distribution of said narcotics.

101. The aforementioned occurrence was witnessed and heard by more various individuals who resided in the subject apartment building as the plaintiff was left handcuffed outside the building for approximately 20 minutes.

102. The aforementioned defamatory statements by the defendant Ramone Simone were false allegations of serious criminal misbehavior by the plaintiff.

103. The statements referenced herein constitute slander per se because they contained various false allegations of serious criminal misbehavior by the plaintiff.

104. Defendant Ramone Simone is liable to plaintiff for slander.

105. As a result of the aforementioned defamatory statements, Plaintiff has been injured in reputation and good standing in the community in which plaintiff lives, and has been damaged in an amount greater than the jurisdictional limits of all lower courts.

AS AN FOR A SIXTH CAUSE OF ACTION

106. Plaintiff repeats and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

107. The defendant Ramone Simone submitted a false police report that plaintiff had committed one or more felony criminal offenses that caused the plaintiff to be arrested without legal justification on the aforementioned date.

108. The defendant Ramone Simone instituted an eviction proceeding against the plaintiff shortly after the false arrest and false imprisonment.

109. The defendant Ramone Simone submitted an allegedly sworn statement to the Kings County Civil Court, Housing part entitled a “notice of termination” stating, amongst other things, the following false statements of and concerning the plaintiff:

- A. “On April 6, 2013 at around 845 pm you or those occupying the premises claiming under you or your guests, where witnesses smoking in the common area of the building and where verbally abusive, and threatened other tenants of the building”.
- B. “You have repeatedly made and continue to make death threats to your Landlord and his family.”
- C. “On or about October 2013 you and your occupants engaged in the sale, distribution and/or supplying of illegal drugs on building property.”

110. Defendant Ramon Simone published the aforementioned false written statements to the police, and other tenants, and the Courts of this State.

111. The aforementioned written defamatory statements published by the defendant Ramone Simone were false allegations of serious criminal misbehavior by the plaintiff.

112. The published written statements referenced herein constitute libel per se because they contained various false allegations of serious criminal misbehavior by the plaintiff.

113. Defendant Ramone Simone is liable to plaintiff for libel.

114. As a result of the aforementioned defamatory statements, Plaintiff has been injured in reputation and good standing in the community in which plaintiff lives, and has been damaged in an amount greater than the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

115. Plaintiff repeats and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint hereinbefore set forth above.

116. Defendants swore out false criminal complaints against plaintiff without excuse or justification, intending to cause harm in a perverted manner to obtain a collateral objective of attempting to evict the plaintiff from his home.

117. The foregoing acts constitute abuse of process.

118. As a result of the foregoing, plaintiff was caused to sustain serious injuries, and to have suffered pain, shock, mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for legal representation, counseling, psychiatric, and/or psychological care; and plaintiff was and will continue to be rendered unable to perform plaintiff's normal activities and duties and has sustained a resultant loss therefrom; he was caused to suffer injury to his reputation and livelihood, economic losses and special damages.

119. As a result of the foregoing, plaintiff was damaged in an amount greater than the jurisdictional limits of all lower courts.

AS AND FOR A EIGHTH CAUSE OF ACTION

120. Plaintiff repeats and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

121. Beginning on November 12, 2013 and continuing through plaintiff's release from custody and the termination of all charges against him, plaintiff was caused to be deliberately, maliciously, willfully and with gross negligence physically detained, falsely arrested and charged with crimes, humiliated, and deprived of his civil rights by defendants, their agents, servants, employees and/or licensees.

122. The aforementioned occurrence took place due to the willful, wanton and intentional acts and/or omissions of the defendants and their employees, agents, servants and/or licensees.

123. As a result of the foregoing, plaintiff was caused to sustain serious injuries and to have suffered pain, shock, mental anguish, public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for legal representation, counseling, psychiatric, and/or psychological care and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

124. As a result of the foregoing, plaintiff was damaged in an amount greater than the jurisdictional limits of all lower courts.

AS AND FOR A NINTH CAUSE OF ACTION

125. Plaintiff repeats and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

126. The acts complained of herein constitute negligent infliction of emotional harm.

127. As a result of the foregoing, plaintiff was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff have been caused to incur and will continue to incur expenses for legal representation counseling, psychiatric, and/or psychological care, and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

128. As a result of the foregoing, plaintiff was damaged in an amount greater than the jurisdictional limits of all lower courts.

AS AND FOR A TENTH CAUSE OF ACTION

129. Plaintiff repeat and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

130. The aforementioned occurrence took place due to the malicious, willful, wanton and intentional acts and/or omissions of the defendants and/or their employees, agents, servants and/or licensees of defendants all of whom were acting in the scope of their authority and within the scope and in the furtherance of their employment.

131. Defendant Ramone Simone maliciously defamed, slandered, published false accusations and initiated the unlawful arrest of the plaintiff, with the ulterior motive of trying to evict the plaintiff from his residence.

132. The acts complained of were extreme and outrageous under the circumstances.

133. The acts complained of herein constitute intentional infliction of emotional harm.

134. As a result of the foregoing, plaintiff was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff have been caused to incur and will continue to incur expenses for legal representation counseling, psychiatric, and/or psychological care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

135. As a result of the foregoing, plaintiff was damaged in an amount greater than the jurisdictional limits of all lower courts.

PUNITIVE DAMAGES

136. Plaintiff repeats and realleges with the same force and effect as if more fully set forth hereat each and every paragraph of the complaint set forth above.

137. The acts complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society.

138. As a result of the foregoing, plaintiff was caused to sustain serious injuries and to have suffered pain, shock, mental anguish public and private humiliation; these injuries and their effects will be permanent; and as a result of said injuries plaintiff has been caused to incur and will continue to incur expenses for legal representation, counseling, psychiatric, and/or psychological care; and plaintiff was and will continue to be rendered unable to perform his normal activities and duties and has sustained a resultant loss therefrom.

139. As a result of the foregoing, plaintiff is entitled to an award of punitive damages in an amount greater than the jurisdictional limits of all lower courts.

WHEREFORE, Plaintiff demands judgment against the defendants herein, in a sum exceeding the jurisdictional limits of all lower courts that would otherwise have jurisdiction, together with attorneys' fees and the costs and disbursements of this action.

Dated: Queens, New York
November 11, 2014

Yours, etc.

s/ Edward J. Anthony
Edward J. Anthony
Attorney for Plaintiff
C/O Law Offices of Michael E. Talassazan
9965 64th Road, Apt. 1d
Rego Park, New York 11347
Tel: 917 768 1155
Fax: 347 808 9148

ATTORNEY VERIFICATION

EDWARD J. ANTHONY, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney for the plaintiff in the aforementioned matter. I have read the foregoing Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein that are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in the firm's files. I make this verification because plaintiff is not presently in the county where I maintains my office.

Dated: Queens, New York
November 11, 2014

s/ *Edward J. Anthony*

EDWARD J. ANTHONY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
STEVEN HEINITZ,

Plaintiff,

-against-

Defendants,

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT,
P.O. JELSON GOYCO individually and in his official capacity,
P.O. SGT. GLEMAUD individually and in his official capacity,
P.O.'s JOHN DOE 1 – 5, P.O.'s JANE DOE 1-5,
AND OTHER POLICE OFFICERS WHOSE IDENTITIES ARE IN THE EXCLUSIVE
CONTROL AND POSSESSION OF THE CITY OF NEW YORK
AND THE NEW YORK CITY POLICE DEPARTMENT,
-----X

Index No.:

* Summons & Verified Complaint*

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